

TENTATIVE RULING

Case: **The People ex rel. Yolo-Solano Air Quality Management District v. Defty et al.**
 Case No. CV2024-1095

Hearing Date: **April 22, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff/cross-defendant The People ex rel. Yolo-Solano Air Quality Management District’s (“plaintiff”) request for judicial notice filed on February 27, 2026, is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff’s supplemental request for judicial notice filed on March 19, 2026, is **DENIED**. (Evid. Code, §§ 452, subd. (d), 453.) The documents are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].) Further, the Court cannot consider new evidence filed with a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538 [“The general rule of motion practice...is that new evidence is not permitted with reply papers”].)

Defendant/cross-complainant Spencer Defty’s (“Defty”) request for judicial notice is **DENIED**. (Evid. Code, §§ 452, subd. (d), 453.) These documents are not relevant to the Court’s determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.)

Plaintiff’s motion for issuance of order to show cause why Defty, Klaus Kolb (“Kolb”), Ameet Sharma (“Sharma”), and Lucy Knorr (“Knorr”) should not be held in contempt of court and/or sanctioned for their continued refusal to comply with the Court’s Protective Order entered and filed on October 1, 2025, is **DENIED**. (Code Civ. Proc., §§ 1209, subd. (a)(5), 1211, subd. (a); 1218, subd. (a), 177.5.) “When the contempt is not committed in the immediate view and presence of the court,an affidavit shall be presented to the court or judge of the facts constituting the contempt...” (Code Civ. Proc., § 1211, subd. (a); *Moore v. Superior Court of Orange County* (2020) 57 Cal.App.5th 441, 454.) Although plaintiff submitted an affidavit of contempt by attorney Matthew C. Maclear, the affidavit fails to satisfy the requirements for contempt. (*Arthur v. Superior Court of Los Angeles County* (1965) 62 Cal.2d 404, 408; *In re Ivey* (2000) 85 Cal.App.4th 793, 798 [“As a general rule, the elements of contempt include (1) a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful failure to comply with the order.”]; Maclear Decl.) Specifically, the affidavit does not show Defty, Kolb, Sharma, and/or Knorr’s “willful failure to comply with the order.” (*In re Ivey, supra*, 85 Cal.App.4th at p. 798; *Little v. Superior Court of Los Angeles County* (1968) 260 Cal.App.2d 311, 316 [“[I]ability for such drastic punishment ‘should not rest upon implication or conjecture’ but rather upon an order expressing in ‘clear, specific and unequivocal’ language the act required”]; Plaintiff’s RJN, Exh. C; Maclear Decl.; Sharma Decl., ¶¶ 1-14.) The declarations submitted adequately satisfy all requirements of the Protective Order.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.